

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 1117

Introduced by Ibach, 44; Armendariz, 18; Lippincott, 34; Strommen, 47.

Read first time January 16, 2026

Committee:

- 1 A BILL FOR AN ACT relating to postsecondary education; to amend section
- 2 80-411, Reissue Revised Statutes of Nebraska, and sections 85-2615,
- 3 85-2616, 85-2618, 85-2620, and 85-2621, Revised Statutes Supplement,
- 4 2025; to change requirements for tuition waivers for dependents of
- 5 veterans as prescribed; to provide for reimbursement for tuition
- 6 waivers as prescribed; to change requirements, limitations, amounts,
- 7 and reimbursement provisions for tuition waivers under the First
- 8 Responder Recruitment and Retention Act; to harmonize provisions;
- 9 and to repeal the original sections.
- 10 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 80-411, Reissue Revised Statutes of Nebraska, is
2 amended to read:

3 80-411 (1) If the requirements of subsection (2) of this section are
4 met, the University of Nebraska, the state colleges, and the community
5 colleges shall waive the following for a dependent of a veteran:

6 (a) All tuition; and

7 (b) All fees remaining due after subtracting awarded federal
8 financial aid grants and state scholarships and grants.

9 (2) A dependent of a veteran person shall be eligible for the waiver
10 of tuition and such fees if the dependent ~~he or she~~ meets the following
11 requirements:

12 (a) The dependent ~~He or she~~ is a resident of this state and meets
13 the appropriate institution's requirements for establishing residency for
14 the purpose of paying instate tuition;

15 (b) The dependent has exhausted all available benefits afforded to
16 the dependent from the Survivors' and Dependents' Educational Assistance
17 program offered by the United States Department of Veterans Affairs
18 pursuant to 38 U.S.C. 3500, et seq.;

19 (c) The dependent ~~(b) He or she~~ has a parent, stepparent, or spouse
20 who was a member of the armed forces of the United States and who:

21 (i) Died while on active duty;

22 (ii) Died of a service-connected disability;

23 (iii) Died subsequent to discharge as a result of injury or illness
24 sustained while a member of the armed forces which may or may not have
25 resulted in total disability;

26 (iv) Is permanently and totally disabled as a result of military
27 service. Permanent and total disability does not include total ratings or
28 other temporary ratings except total ratings based on individual
29 unemployability if permanent; or

30 (v) While a member of the armed forces of the United States, is
31 classified as missing in action or as a prisoner of war during armed

1 hostilities; and

2 ~~(d) (e)~~ If the dependent ~~he or she~~ is a child or stepchild of a
3 person described in subdivision ~~(2)(c)~~ ~~(2)(b)~~ of this section, the
4 dependent ~~he or she~~ is under the age of twenty-six years unless the
5 dependent ~~he or she~~ serves on active duty with the armed forces after his
6 or her eighteenth birthday but before his or her twenty-sixth birthday,
7 in which case such period shall end five years after the dependent's ~~his~~
8 ~~or her~~ first discharge or release from such duty with the armed forces,
9 but in no event shall such period be extended beyond the thirty-first
10 birthday.

11 (3) An application for a waiver shall be submitted on a form to be
12 prescribed by the Director of Veterans' Affairs.

13 (4) If the Director of Veterans' Affairs or the director's designee
14 determines that the applicant is eligible for the waiver, the director or
15 the director's designee shall so certify to the institution in which the
16 applicant desires to enroll. The decision of the director or the
17 director's designee shall, in the absence of fraud or misrepresentation
18 on the part of the applicant, be final and shall be binding upon the
19 applicant and upon the institutions specified in this section. The
20 director shall adopt and promulgate reasonable rules and regulations for
21 the administration of this section.

22 (5) The waiver shall be valid for one degree, diploma, or
23 certificate from a community college and one baccalaureate degree.
24 Receipt of such degree, diploma, or certificate from a community college
25 shall precede receipt of such baccalaureate degree.

26 **Sec. 2.** (1) Beginning July 1, 2028, subject to available
27 appropriations, the Coordinating Commission for Postsecondary Education
28 shall reimburse the University of Nebraska, each state college, and each
29 community college for fifty percent of the tuition waivers provided
30 pursuant to section 80-411.

31 (2) The University of Nebraska, each state college, and each

1 community college shall request reimbursement by submitting documentation
2 in a form and manner prescribed by the commission.

3 (3) If state appropriations are not sufficient to satisfy all of the
4 claims filed during any fiscal year, then the commission shall prorate
5 the reimbursements for the University of Nebraska, each state college,
6 and each community college for that fiscal year such that the total for
7 all reimbursements is equal to the appropriation. Any reimbursement
8 claims paid on a prorated basis shall not be refiled.

9 **Sec. 3.** Section 85-2615, Revised Statutes Supplement, 2025, is
10 amended to read:

11 85-2615 A first responder or an eligible disabled person may receive
12 a tuition waiver for up to one hundred twenty credit hours or five years,
13 whichever comes first, if the first responder or eligible disabled person
14 ~~he or she~~ otherwise continues to be eligible for participation under
15 sections 85-2611 to 85-2614.

16 **Sec. 4.** Section 85-2616, Revised Statutes Supplement, 2025, is
17 amended to read:

18 85-2616 (1) Except as provided in subsections (3) and (4) of this
19 section, a qualifying child of a first responder who satisfies section
20 85-2612 or of an eligible disabled person who satisfies section 85-2614
21 shall be entitled to a tuition waiver as provided in section 85-2620 from
22 any state university, state college, or community college for an
23 associate or baccalaureate degree program if the qualifying child:

24 (a) Meets all admission requirements of the state university, state
25 college, or community college;

26 (b) Executes an agreement in accordance with section 85-2617;

27 (c) Has not previously earned a baccalaureate degree;

28 (d) Completes and submits to the United States Department of
29 Education a Free Application for Federal Student Aid;

30 (e) Submits a document to the state university, state college, or
31 community college confirming that the qualifying child has satisfied

1 subdivision (1)(d) of this section. Such document shall be submitted in a
2 form and manner as prescribed by the university, college, or community
3 college;

4 (f) Submits the certificate of verification required by subsection
5 (2) of this section; and

6 (g) Files with the Department of Revenue documentation showing proof
7 that, for each year in which the qualifying child applies for and
8 receives the tuition waiver, the first responder or eligible disabled
9 person through whom the qualifying child is claiming the tuition waiver:

10 (i) Is employed as a first responder or is an eligible disabled
11 person, as applicable; and

12 (ii) Resides in Nebraska; and -

13 (h) Maintains a cumulative grade-point average of 3.0 or greater on
14 a four-point scale while enrolled in the state university, state college,
15 or community college.

16 (2)(a) An application for the tuition waiver shall include a
17 certificate of verification from:

18 (i) The first responder's superior officer attesting to such first
19 responder's satisfaction of section 85-2612; or

20 (ii) The eligible disabled person's former superior officer
21 attesting to such person's satisfaction of section 85-2614.

22 (b) The applicant shall include the certificate of verification when
23 applying to the state university, state college, or community college in
24 order to obtain a tuition waiver upon initial enrollment.

25 (3) The death of a first responder in the line of duty that occurs
26 after submission of an application for a tuition waiver shall not
27 disqualify such first responder's otherwise eligible qualifying child
28 from receiving the tuition waiver. In such case:

29 (a) In lieu of submitting the certificate of verification provided
30 for in subsection (2) of this section, the qualifying child shall submit
31 a certificate of verification from the first responder's superior officer

1 attesting that:

2 (i) At the time of such death, such first responder satisfied
3 section 85-2612; and

4 (ii) Such first responder died in the line of duty; and

5 (b) In lieu of making the filing required by subdivision (1)(g) of
6 this section, the qualifying child shall file with the Department of
7 Revenue documentation showing proof that, at the time of such death:

8 (i) Such first responder was employed as a first responder; and

9 (ii) Such first responder resided in Nebraska.

10 (4) For a qualifying child of a first responder who is a
11 correctional officer or a youth detention officer or of an eligible
12 disabled person who was a correctional officer or a youth detention
13 officer, the tuition waiver shall only be available beginning July 1,
14 2027, and shall only be available for attendance at a state university.

15 **Sec. 5.** Section 85-2618, Revised Statutes Supplement, 2025, is
16 amended to read:

17 85-2618 A qualifying child may receive the tuition waiver under
18 section 85-2616 for up to one hundred twenty credit hours or five years,
19 whichever comes first, if the qualifying child continues to be eligible
20 for participation. The five years or one hundred twenty credit hours of
21 tuition waiver eligibility starts once the qualifying child applies for
22 and receives the tuition waiver for the first time ~~and is available to~~
23 ~~such qualifying child for the next consecutive five years.~~

24 **Sec. 6.** Section 85-2620, Revised Statutes Supplement, 2025, is
25 amended to read:

26 85-2620 A state university, state college, or community college that
27 has granted a tuition waiver under the First Responder Recruitment and
28 Retention Act shall waive ~~one hundred~~ XXX percent of resident tuition
29 charges remaining due after subtracting awarded federal financial aid
30 grants and state scholarships and grants for the tuition waiver recipient
31 during the time the recipient is enrolled. To remain eligible, such

1 recipient must comply with all requirements of the institution for
2 continued attendance and award of an associate degree or a baccalaureate
3 degree.

4 **Sec. 7.** Section 85-2621, Revised Statutes Supplement, 2025, is
5 amended to read:

6 85-2621 (1) Beginning July 1, 2028, subject to available
7 appropriations, the Coordinating Commission for Postsecondary Education
8 shall reimburse each state university, state college, and community
9 college for fifty percent of the tuition waivers provided under the First
10 Responder Recruitment and Retention Act ~~for correctional officers, youth~~
11 ~~detention officers, eligible disabled persons that were formerly~~
12 ~~correctional officers and youth detention officers, and the qualifying~~
13 ~~children of such officers and persons granted in the preceding year by~~
14 ~~such state university.~~

15 (2) A state university shall request reimbursement by submitting
16 documentation in a form and manner prescribed by the commission.

17 (3) If state appropriations are not sufficient to satisfy all of the
18 claims filed during any fiscal year, then the commission shall prorate
19 the reimbursements for each state university, state college, and
20 community college university's total reimbursement for that fiscal year
21 such that the total for all reimbursements is equal to the in proportion
22 ~~to the remaining~~ appropriation. Any reimbursement claims paid on a
23 prorated basis shall not be refiled.

24 **Sec. 8.** Original section 80-411, Reissue Revised Statutes of
25 Nebraska, and sections 85-2615, 85-2616, 85-2618, 85-2620, and 85-2621,
26 Revised Statutes Supplement, 2025, are repealed.